

HOUSE JOINT RESOLUTION 863

By Lynn

A RESOLUTION urging the passage of H.R. 2350 (S. 1137) of the 119th Congress to permit states to deploy cell-phone jamming systems in prisons.

WHEREAS, federal law currently bans states from using cell-phone jamming technology, leaving correctional facilities defenseless against the escalating threat of contraband cell phones within their walls; and

WHEREAS, cell phones are not merely communication devices in prison; they are also tools that enable convicts to conspire and commit crimes that grievously wound our citizens and our communities; and

WHEREAS, H.R. 2350 (S. 1137) of the 119th Congress (sponsored by Tennessee Congressman David Kustoff and Arkansas Senator Tom Cotton) seeks to disrupt inmates' ability to orchestrate crimes from behind bars using smuggled cell phones; and

WHEREAS, this timely legislation would allow the states to deploy cell-phone jamming systems in prisons but use only equipment that would not disrupt emergency signals such as 9-1-1; and

WHEREAS, there can be no doubt that the proliferation of contraband cell phones is a problem in state correctional facilities; a 2020 survey of twenty state corrections departments uncovered 25,840 contraband cell phones in a single year, a stark reminder of the scale of illegal activity by inmates; and

WHEREAS, in Tennessee and across the nation, investigations consistently reveal the use of contraband phones by inmates to coordinate with external criminal networks in the commission of felonies; and

WHEREAS, inmates typically leverage these contraband devices to:

1. Direct drug-trafficking operations with unprecedented efficiency;

2. Orchestrate violent crimes both inside and outside correctional facilities;
3. Execute complex fraud schemes targeting vulnerable citizens;
4. Intimidate witnesses and threaten victims' families; and
5. Coordinate escape attempts that put law enforcement officers at risk; and

WHEREAS, jamming systems represent the most effective technology available to combat the use of contraband cell phones in prison and prevent inmates from directing criminal enterprises while behind bars; and

WHEREAS, H.R. 2350 (S. 1137) of the 119th Congress offers a narrowly tailored solution to this critical threat to our state correctional systems, while ensuring appropriate oversight and safeguards; and

WHEREAS, a bipartisan coalition of thirty state attorneys general recently endorsed this landmark legislation as an effective tool in the management of our prisons and the protection of our citizens; now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that we urge the U.S. Congress to act decisively and enact H.R. 2350 (S. 1137) of the 119th Congress, bipartisan legislation that permits states to deploy cell-phone jamming systems in prisons, as a vital public safety measure.

BE IT FURTHER RESOLVED, that a certified copy of this resolution be transmitted to the President and the Secretary of the U.S. Senate, the Speaker and the Clerk of the U.S. House of Representatives, and each member of Tennessee's delegation to the U.S. Congress.